

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR SEPTEMBER 24, 2026, AT 8:30 A.M.

3. M-CV-0096718 BREIT WAVE MF SC OWNER v. PILGRIM, GABRIEL

This tentative ruling is issued by the **Honorable Albert A. Erkel**. If oral argument is requested, it shall be heard on **September 30, 2026, at 8:30 a.m. in Department 4**.

Defendant Gabriel Pilgrim's Motion to Set Aside Default and Default Judgment

Defendant Gabriel Pilgrim's unopposed motion to set aside the judgment entered against him on August 5, 2026, is granted. (Code Civ. Proc., § 473, subd. (b.) The judgment entered against him on August 5, 2026, is set aside.

A case management conference is set for **October 9, 2026, at 9:00 a.m. in Department 1** for the parties to select a new trial date. Department 1 is located at 101 Maple Street Auburn, CA 95603.

4. S-CV-0051441 BURKE, JAMES v. WOLFE CREEK CARE CENTER

Defendants Wolfe Creek Care Center, Bluebell Holdings, Foremost Healthcare Properties, California Opco, Opco Holdings, Bay Bridge CA Pit Al Partners, Providence Group, Jason Murray, and Mark Darrell Hancock's Motion to Dismiss

Defendants move to dismiss the action for delay of prosecution on the grounds no successor in interest has been appointed and no steps have been taken to prosecute the action or bring it to trial. (Code Civ. Proc., §§ 583.410, 583.420; Cal. Rules of Court, rules 3.1340, 3.1342.)

A court determining whether to exercise its discretion to dismiss an action for a plaintiff's delay in prosecution must consider all relevant matters, including

- (1) The court's file in the case and the declarations and supporting data submitted by the parties and, where applicable, the availability of the moving party and other essential parties for service of process;
- (2) The diligence in seeking to effect service of process;
- (3) The extent to which the parties engaged in any settlement negotiations or discussions;
- (4) The diligence of the parties in pursuing discovery or other pretrial proceedings, including any extraordinary relief sought by either party;
- (5) The nature and complexity of the case;

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- (6) The law applicable to the case, including the pendency of other litigation under a common set of facts or determinative of the legal or factual issues in the case;
- (7) The nature of any extensions of time or other delay attributable to either party;
- (8) The condition of the court's calendar and the availability of an earlier trial date if the matter was ready for trial;
- (9) Whether the interests of justice are best served by dismissal or trial of the case; and
- (10) Any other fact or circumstance relevant to a fair determination of the issue.

(Cal. Rules of Court, rule 3.1342, subd. (e).)

Additionally, the court must be guided by the policy that “a plaintiff shall proceed with reasonable diligence in the prosecution of an action but that all parties shall cooperate in bringing the action to trial or other disposition. [Also,] the policy favoring the right of parties to make stipulations in their own interests and the policy favoring trial or other disposition of an action on the merits are generally to be preferred over the policy that requires dismissal for failure to proceed with reasonable diligence in the prosecution of an action in construing the provisions of this chapter.” (Code Civ. Proc., § 583.130; Cal. Rules of Court, rule 3.1342, subd. (e).)

Here, the factors and enumerated policies weigh against defendants. On September 15, 2026, the court granted Alyssa Burke’s ex parte application to be appointed as successor in interest, which resolved defendants’ chief concern. Moreover, Alyssa Burke’s declaration filed in support of her opposition establishes her diligence in attempting to secure representation as she contacted over 40 law firms before retaining counsel. Thus, any delay appears attributable to the difficulty in retaining counsel rather than Alyssa Burke herself.

Accordingly, defendants’ motion to dismiss is denied.

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